

HOUSE No. 3207

The Commonwealth of Massachusetts

PRESENTED BY:

Francisco E. Paulino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modify the revenue requirements for smoking bars.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>1/15/2025</i>

HOUSE No. 3207

By Representative Paulino of Methuen, a petition (accompanied by bill, House, No. 3207) of Francisco E. Paulino for legislation to modify the revenue requirements for smoking bars. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modify the revenue requirements for smoking bars.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22 of Chapter 270 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the words “equal to or greater than 51%” and
3 inserting in place thereof the following words: “equal to or greater than 33%.”

4 SECTION 2. Section 22 of Chapter 270 of the General Laws, as so amended, is further
5 amended by inserting after the word “products” the following new paragraph:

6 “Smoking bars that qualify under this section shall comply with all applicable health and
7 safety standards promulgated by the Department of Public Health, including but not limited to
8 regulations concerning ventilation, the safety of employees, and the protection of patrons from
9 secondhand smoke exposure.”

10 SECTION 3. Section 22 of Chapter 270 of the General Laws, as so amended, is further
11 amended by adding the following new paragraph:

12 “Smoking bars shall submit a quarterly declaration to the Department of Revenue to
13 demonstrate that revenue generated from the sale of tobacco products meets or exceeds the 33%
14 threshold of total combined revenue. The quarterly report shall include a breakdown of revenue
15 derived from the sale of tobacco products, food, and beverages to confirm continued compliance
16 with the 33% revenue requirement.”

17 SECTION 4. This act shall take effect immediately upon its passage.